

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JOSE DELEON CABRERA,

Plaintiff(s),

- against -

Index No.:

Date Purchased:

VERIFIED COMPLAINTTHE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT AND P.O. EDWARD GASTON
OF THE 40TH PCT., SHIELD #: 4616,
P.O. JOHN DOE #1 and P.O. JOHN DOE #2,Defendant(s).
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Plaintiff, by his attorneys, GETZ & BRAVERMAN, P.C., complaining of the Defendants,
respectfully alleges, upon information and belief:

1. At the time of the commencement of this action, Plaintiff was a resident of the County of Bronx, State of New York.
2. This action falls within one or more of the exemptions set forth in CPLR §1602.
3. The cause of action alleged herein arose in the County of Bronx, State of New York.
4. Upon information and belief, that at all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
5. Upon information and belief, that at all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained and controlled the **NEW YORK CITY POLICE DEPARTMENT**, including all the police officers thereof.

6. Upon information and belief, at all times mentioned, Defendant, **P.O. EDWARD GASTON OF THE 40th PCT, SHIELD #: 4616**, along with **P.O. JOHN DOE #1 and P.O. JOHN DOE #2** was and are a police officers of the Defendant New York Police Department, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

7. That at this time a Motion to file a late Notice of Claim is being prepared.

8. That a 50- H hearing has not been held.

9. That this action is commenced within one year and 90 days after the cause of Action arose.

AS AND FOR THE FIRST CAUSE OF ACTION

10. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "10", with the same force and effect as if more fully and completely set forth at length herein.

11. That on March 22, 2017 around 2:30 a.m. Plaintiff **JOSE DELEON CABRERA** was driving down Cypress Avenue, County of Bronx and State of New York, when he was stopped and seized at the corner of Cypress Avenue and East 138th Street by **P.O. EDWARD GASTON OF THE 40th PCT, SHIELD #: 4616**, along with **P.O. JOHN DOE #1 and P.O. JOHN DOE #2** members of the **NEW YORK CITY POLICE DEPARTMENT**, causing Plaintiff to be detained in the **40th PCT** causing Plaintiff to be treated at Lincoln Hospital.

12. That said occurrence and the result thereof were due solely and wholly by reason of the negligence, carelessness and recklessness of the Defendants, its agents, servants,

employees, licensees, designees and/or representatives in ownership, maintenance, management, supervision, charge and control of the aforesaid entity and personnel.

13. That there was no culpable conduct on the part of the claimant contributing thereto.

AS AND FOR A SECOND CAUSE OF ACTION

14. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "14", with the same force and effect as if more fully and completely set forth at length herein.

15. That on or about March 22, 2017 at around 2:00 a.m., while the Plaintiff was lawfully at the above mentioned location, when **P.O. EDWARD GASTON OF THE 40^h PCT, SHIELD #: 4616**, along with **P.O. JOHN DOE #1 and P.O. JOHN DOE #2** members of the **NEW YORK POLICE DEPARTMENT** without just cause or provocation seized and detained the Plaintiff to the **40th PCT**, causing Plaintiff to be treated at Lincoln Hospital due to the negligence of the **NYPD**.

16. That the defendants, their agents, servants and employees, acting as agents and on behalf of defendants and within the scope of their employment, intentionally, and willfully had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally committed a violent and/or menacing act which threatened such contact in the plaintiff, and defendants, in a hostile and/or offensive manner prohibited the Plaintiff from using the rest room for around (4) four to (6) six hours with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and causing severe pain

and requiring Plaintiff, **JOSE DELEON CABRERA** to be taken to Lincoln Hospital on March 22, 2017.

17. That by reason of the aforesaid intentional negligence committed by the defendants, their agents, servants and employees, acting within the scope of their authority and without probable or reasonable cause, the Plaintiff suffered great bodily injury in and about his anatomy and was rendered sick, sore, lame and disabled, and among other things, he suffered conscious pain and suffering and otherwise damaged.

19. That by reason of the aforesaid, the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

20. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "19", with the same force and effect as if more fully set forth herein.

21. That the defendant, **THE CITY OF NEW YORK**, was careless and reckless in hiring and retaining of its employee, the above named individuals: in that the said defendant's employees, the above named individual; in that the said defendants' employees lacked the experience, deportment and ability to be employed by the defendant; in that the defendant failed to exercise due care and caution on its hiring practices, and in particular, the hiring of the defendant employees who lacked the mental capacity and the ability to function as employees of the aforementioned defendants.

22. That the aforesaid occurrence, to wit: **NYPD** prohibiting the Plaintiff to use the rest room for around (4) four to (6) six hours resulting in him having to be treated at Lincoln Hospital caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

23. That by reason of the aforesaid, the plaintiff was injured in mind and body and still suffers and, upon information and belief, will continue to suffer great physical and mental pain , and he was rendered sick, sore, lame and disabled and so remains, and he has expended and incurred diverse and substantial sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation imposed upon him by the actions of the defendants, their agents, servants, employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

AS AND FOR A FOURTH CAUSE OF ACTION

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "23" , with the same force and effect as if more fully set forth herein.

25. That the defendant, their agents, servants and employees negligently, carelessly And recklessly failed to properly train and supervise their employees, in particular the members of the **NEW YORK CITY POLICE DEPARTMENT**, and impart upon them the knowledge of the proper circumstances under which an arrest and search may be made; to control their tempers and exercise the proper deportment, behavior and conduct

as representatives of their employers; and in that the defendants, their agents, servants and employees were otherwise reckless, careless and negligent.

26. That the aforesaid occurrence to wit: **NYPD** prohibited the Plaintiff from using the rest room for around (4) four to (6) six hours resulting in him having to be treated at Lincoln Hospital were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

27. That the aforesaid occurrence to wit: the negligence and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants **P.O. EDWARD GASTON OF THE 40th PCT, SHIELD #: 4616, along with P.O. JOHN DOE #1 and P.O. JOHN DOE #2** its agents, servants and employees without any negligence on the part of the plaintiff.

28. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and, upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and he was incapacitated from his usual occupation by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

29. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FORTHE FIFTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "30", with the same force and effect as if more fully set forth herein.

31. That the defendants, their agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances in that they carelessly and recklessly without provocation and with great force and violence; negligently, carelessly and recklessly used the threat of physical force and actually used physical force upon the plaintiff thereat; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

32. That the aforesaid occurrence, to wit: prohibiting the Plaintiff to use the rest room for around (4) four to (6) six hours resulting in him having to be treated at Lincoln Hospital therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

33. Upon the detainment of Plaintiff, the Defendant., the **NYPD** while acting in concert, intentionally made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive manner.

34. As a direct and proximate result thereof, plaintiff claims damages for the injuries set forth above.

**AS AND FOR THE SIXTH CAUSE OF ACTION
VIOLATION OF CIVIL RIGHTS**

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "36", with the same force and effect as if more fully set forth herein.

36. Defendants **P.O. EDWARD GASTON OF THE 40th PCT, SHIELD #: 4616**, along with **P.O. JOHN DOE #1 and P.O. JOHN DOE #2** and their employees **NYPD** violated the plaintiff's civil rights, pursuant to u.s.c.a. §1981, 1983, 1985, in that claimant **JOSE DELEON CABRERA** was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a state, caused claimant to be so deprived and other and further violations of claimant's rights and privileges secured to claimant under the Constitutions of the United State of America and State of New York.

37. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

**AS AND FOR THE SEVENTH CAUSE OF ACTION
(FALSE ARREST/MALICIOUS PROSECUTION)**

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "39" with the same force and effect as if more fully set forth herein.

39. That on or about March 22, 2017, Plaintiff, **JOSE DELEON CABRERA**, was wrongfully and falsely arrested, detained and imprisoned, without any right or grounds

therefore.

40. That on or about March 22, 2017, the defendants acting within the scope and authority of their employment and office, wrongfully and falsely accused the plaintiff, **JOSE DELEON CABRERA** of the crimes of operating a motor vehicle while under the influence of alcohol or drug.

41. Upon information and belief, on or about March 22, 2017 Defendants **CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. EDWARD GASTON OF THE 40TH PCT, SHIELD #: 4616, P.O. JOHN DOE #1 and P.O. JOHN DOE #2** deliberately and maliciously prosecuted Plaintiff **JOSE DELEON CABRERA**, an innocent male without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

42. That the said arrest and imprisonment of plaintiff, **JOSE DELEON CABRERA** was caused by said defendants, their agents, servants and employees, without legal process, without authority of the law and without any reasonable cause, or belief, that the plaintiff, **JOSE DELEON CABRERA**, was in fact guilty of such crimes.

43. That the said arrest of the plaintiff herein was caused, allowed and permitted by the defendants herein, their agents, servants and/or employees, wrongfully, unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the charges having been made.

44. That the defendant, their agents, servants and/or employees falsely arrested the

plaintiff, compelled him to go with New York City Police officers pursuant to the instruction and will of the above named defendants, detained and imprisoned plaintiff at other diverse places and times, including, but not limited to, precinct in the station-house in the County of New York, City and State of New York and Central Booking located in the Borough of Bronx, City and State of New York.

45. That the said defendants, their agents, servants and/or employees, acting within the scope of their authority and within the scope of their employment, caused the plaintiff herein to be arrested, detained and imprisoned, even though the defendants, their agents, servants and/or employees, had the opportunity to know, or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be, arrested, searched, detained and placed in confinement at said locations.

46. That as a result of the aforesaid accusations made by the said defendants, their agents, servants and employees, acting under the scope of their office and within the scope of their authority, Plaintiff **JOSE DELEON CABRERA** was falsely, publicly and maliciously accused.

47. That the defendants, their agents, servants and/or employees, as set forth on the aforementioned date, time and place, intended to cause the arrest, detention and imprisonment of the plaintiff herein; plaintiff was conscious of the said arrest, detention, and imprisonment; and that said arrest, detention and imprisonment was not otherwise privileged.

48. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, was caused wholly and solely by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence of the part of the plaintiff herein.

49. That by reason of the aforesaid, the plaintiff was subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and was incapacitated from his usual occupation.

50. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A EIGHTH CAUSE OF ACTION

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "52", with the same force and effect as if more fully and at length set forth herein.

52. That on or about March 22, 2017, and prior and subsequent thereto, in the County of Bronx, City and State of New York, the defendants, acting within the scope and authority of their office and employment, carelessly, recklessly, maliciously and negligently caused, permitted, allowed, created and instigated the prosecution, and continuing prosecution, of the plaintiff with deliberate indifference.

53. That the plaintiff was wholly innocent, and was forced by the defendants, their agents, servants and/or employees, to submit to lengthy Court proceedings.

54. That on or about the March 22, 2017, and prior and subsequent thereto, the defendants, their agents, servants and employees falsely and maliciously, without probable cause or provocation charged the plaintiff with various crimes, including felonies, misdemeanors and violations.

55. That the said prosecution, criminal charges and hearings were instituted and procured by the defendant, their agents, servants and/or employees in this action unlawfully, maliciously and without reasonable or probable cause, with actual malice and was terminated in plaintiff's favor.

56. That the aforesaid prosecution, was caused solely and wholly by reason of the malice and reckless disregard for the rights of the plaintiff.

57. That by reason of the aforesaid, the plaintiff still suffers and, upon information and belief will continue to suffer, great indignities, humiliation and ridicule; was greatly injured to his credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and was incapacitated from his usual occupations. Upon information and belief, the plaintiff has expended diverse and substantial sums of monies, in an effort to extricate himself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction.

58. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

**AS AND FOR A EIGHT CAUSE OF ACTION
(CIVIL RIGHTS VIOLATIONS)**

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "59", with the same force and effect as if more fully and at length set forth herein.

60. That defendants, **P.O. EDWARD GASTON OF THE 40TH PCT, SHIELD #: 4616, P.O. JOHN DOE #1 and P.O. JOHN DOE #2** failed to properly and adequately ascertain that plaintiff was not in violation of the law and that the plaintiff was detained, prosecuted and imprisoned for an extended period of time, depriving him of his rights and liberties as set forth in the Constitution of the United States of America and of the State of New York, threatened the plaintiff, without cause, continued to detain and to imprison the plaintiff without any conduct on the part of the plaintiff to warrant, to wit:

- a) the arrest, detention, prosecution and imprisonment were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of the statute, ordinances, regulations, customs and usages of the he United States of America, the State of New York, City of New York and County of Bronx, within the scope of their employment and under the authority of their office as employees of The New York City Police Department for said state.
- b) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment,

caused and unlawful arrest, detention, prosecution and

imprisonment of the

plaintiff thus depriving him of his freedom and civil rights as guaranteed by the Constitution of the United States of America when they in a willful, wanton, reckless, careless and negligent manner deprived the plaintiff of his due process, liberty and freedom without his consent and with the intention of causing harm and deprivation of his freedom and civil liberties, all without warrant, probable cause whatever; and,

- c) that the defendants, their agents, servants and employees failed to adequately and properly train, supervise, monitor, discipline or in any other way control the behavior and performance of police officers, their agents, servants and/or employees; that in their practices in the exercise as a police officer, their exercise of supervisory functions and their failure to enforce the laws of the United States of America, the State and City of New York is evidence of the careless and negligent lack of cautious regard for the rights of the public including the plaintiff herein; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals, and reasonable police officers would show in the execution of, and functions of the police officers; and,
- d) the failure of the defendants, their agents, servants and

employees to hire, train, supervise, discipline or in any other way control the defendants, in the exercise of their functions; in that their failure to enforce the laws of the United States of America, the State of New York and the City of New York were carried out carelessly and negligently and without regard for the consequences, so as to display a careless and negligent disregards for the dangers of harm and injury to the citizens of the United State of America, and the State and City of New York including, plaintiff; and,

- e) due to the acts of the defendants, their agents, servants and employees, and the failure of the defendants, to control, discipline, train, monitor, supervise and/or properly hire personnel under their care, supervision and control, and the continued employment of same presents a clear and present danger to the citizens of the United States of a America and the City and State of New York; and,
- f) That the said arrest, detention, prosecution and imprisonment were instituted and procured by the defendant, their agents, servants and employees, under the scope and authority of their office and employment in this action, unlawfully, carelessly and negligently and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the revocation of freedom; hearing and criminal proceedings by the said defendants

against the plaintiff was without probable cause with actual malice and was ultimately terminated in favor of the plaintiff, and,

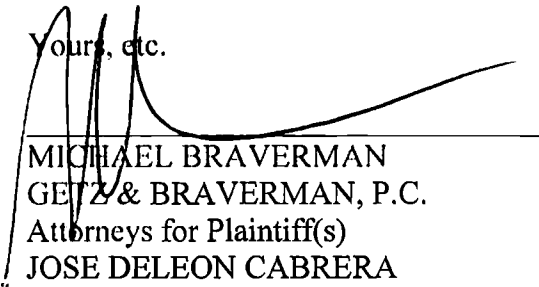
- g) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, permitted the use of policy, and or drafted policy that was violating the Constitutional rights of the above named plaintiff; and, in that each and all of the employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Bronx, and under the authority of their office as police officers for said State, City and County.

61. Defendants, **P.O. EDWARD GASTON OF THE 40TH PCT, SHIELD #: 4616, P.O. JOHN DOE #1 and P.O. JOHN DOE #2** did not have probable cause to arrest, detain, prosecute and imprison the plaintiff before, after or at the time of this incident and deprive plaintiff of his Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.

WHEREFORE, Plaintiffs demand judgment against the Defendants herein on all causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York
June 21, 2018

Yours, etc.



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
JOSE DELEON CABRERA
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9206

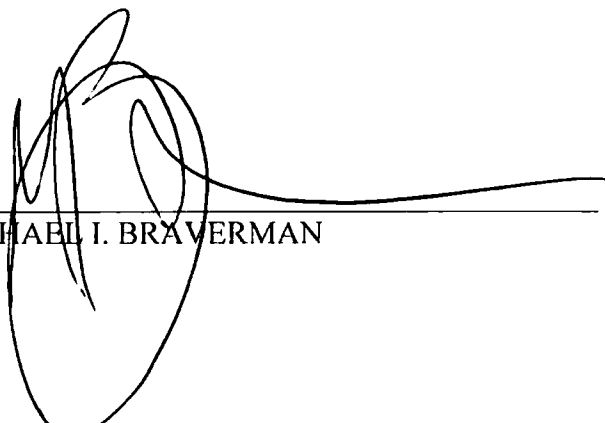
ATTORNEY'S VERIFICATION

MICHAEL I. BRAVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at GETZ & BRAVERMAN, P.C., attorneys of record for Plaintiff(s), **JOSE DELEON CABRERA**, in the action within. I have read the annexed **SUMMONS & VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Bronx, New York
 June 21, 2018



MICHAEL I. BRAVERMAN

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOSE DELEON CABRERA,

Plaintiff(s),

- against -

**THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT AND POLICE
OFFICER EDWARD GASTON, SHIELD# 4616 OF THE 40TH PRECINCT, P.O. JOHN DOE # 1
AND P.O. JOHN DOE 2,**

Defendant(s),

SUMMONS AND VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.

Attorneys for Plaintiff

JOSE DELEON CABRERA

172 East 161st Street

Bronx, NY 10451

(718) 993-3000

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY 10007

P.O. EDWARD GASTON OF THE 40TH PCT., SHIELD #: 4616
257 Alexander Avenue
Bronx, New York 10454